

MEDICAL ASSISTANCE IN DYING

The law, the record, and where Alberta stands

A documentation report · Sections 1 to 4 · August 2026

Before you read further

This report is about assisted death. If you are struggling right now, please reach out.

988 Suicide Crisis Helpline — call or text, 24 hours a day.

Alberta Mental Health Help Line — 1-877-303-2642, 24 hours a day.

You do not have to be in crisis to call. You can call because the subject is heavy and you would rather not sit with it alone.

1. WHY THIS REPORT EXISTS, AND WHAT IT DOES NOT DO

A member of our community asked for this. That is the whole of why it exists.

The question came up the way these questions usually come up — not as an abstraction, but because people receiving disability income support in Alberta are watching their programs change, and they wanted to understand a law that touches the same population. That is a reasonable thing to want to understand. The information is scattered across federal statutes, provincial legislation, parliamentary committee reports and government data sets, and almost nobody has the time or the access to assemble it.

So we assembled it.

What this report is

It sets out what the law says, what the record shows, and who holds which position. It cites primary sources. Where something could not be verified against a primary source, it says so plainly rather than filling the gap with something that sounds right.

What this report is not

It does not tell you what to think about assisted dying. We are not going to arrive at a recommendation at the end. There is no version of this report where we tell disabled Albertans what the correct view is on whether they should be able to choose an assisted death.

That is not neutrality for its own sake. It is because our community does not hold one view, and we know it.

Some people in this community are afraid of being steered toward death because they are expensive to keep alive. That fear has a documented history behind it and it is not paranoia. Other people in this community are afraid of being denied a choice they want, because somebody else has decided they are too vulnerable to make it. That fear is also reasonable and also has a history.

Both of those people are in this group. Some days they are the same person. A report that resolved the question would be telling half the community that their fear does not count.

One thing we need to say plainly, before someone else says it for us

This report documents that Alberta has passed a law **restricting** access to assisted dying, more tightly than federal law requires.

We are a campaign that opposes this same government on disability income policy. We have documented, at length, what the AISH to ADAP transition has done to people. Someone will notice that a report describing Alberta's restriction of assisted dying could be read as approval of that government, and they will say so.

So we will say it first. **Describing what a law does, and to whom, is not endorsement of the government that passed it.** We take no position here on the Alberta government, or on the federal government, or on which of them has this right. Our discipline throughout this campaign has been to document effect rather than attribute motive, and that discipline does not change because the subject is harder.

We are asking you to hold both things at once. That is a lot to ask of a reader. It is less than what this subject asks of the people living inside it.

How to read this

Sections 2 and 3 cover federal law — what it permits, what it excludes, and what is currently before Parliament. Section 4 covers Alberta's own law, provision by provision, including its exact legal status, which turns out to be the most consequential thing in this report.

Positions held by organizations are attributed to those organizations. Data is attributed to whoever collected it. Where the law is unsettled, we say it is unsettled rather than picking the answer we prefer.

2. THE FEDERAL LAW: HOW WE GOT HERE AND WHAT IT PERMITS

Assisted dying is governed by the **federal Criminal Code**. That single fact drives most of what follows, including the constitutional question in section 5.

Carter, 2015

In *Carter v Canada (Attorney General)*, 2015 SCC 5, decided February 6, 2015, the Supreme Court of Canada struck down the blanket criminal prohibition on physician-assisted death. The Court held it violated section 7 of the Charter — the right to life, liberty and security of the person — for competent adults with a grievous and irremediable medical condition causing enduring and intolerable suffering.

The Court did not create a program. It removed a prohibition and left Parliament to build the framework.

Bill C-14, 2016

Parliament's response was Bill C-14, which built the framework Canada still runs on. It created exemptions in the Criminal Code so that a medical practitioner or nurse practitioner providing assistance in dying, within the rules, does not commit an offence.

That is the shape of the federal law, and it matters more than it sounds: **the Criminal Code does not require anyone to provide assisted dying. It decriminalizes it.** Keep that in mind for section 5.

C-14 required that a person's natural death be “reasonably foreseeable.”

Truchon, 2019

In *Truchon c Procureur général du Canada*, 2019 QCCS 3792, the Quebec Superior Court struck down the reasonably-foreseeable-death requirement. The federal government did not appeal. It legislated instead.

Bill C-7, 2021, and the two tracks

Bill C-7 removed the reasonably-foreseeable-death requirement and split the framework into what everyone now calls **two tracks**:

- **Track 1** — the person's natural death is reasonably foreseeable.
- **Track 2** — the person has a grievous and irremediable condition and enduring intolerable suffering, but their natural death is **not** reasonably foreseeable.

Track 2 carries additional safeguards that Track 1 does not: a minimum 90-day assessment period, a requirement that one assessor have expertise in the person's condition, and a requirement that the person be informed of and offered available means to relieve their suffering, including counselling, mental health and disability support services, community services and palliative care.

Track 2 is the part of the law that most directly concerns disabled people whose conditions are not terminal. It is also the part Alberta's own law addresses, in section 4.

The scale of it

From Health Canada's Sixth Annual Report on Medical Assistance in Dying, covering 2024 and published November 28, 2025:

- **16,499** provisions in 2024, a 6.9% increase over the previous year
- roughly **76,475** cumulative since 2016
- **Track 1: 15,767 provisions, 95.6%**
- **Track 2: 732 provisions, 4.4%** — up from 4.1% in 2023

Track 2 is a small fraction of the whole. It is also the fraction where nearly all of the public argument sits.

3. THE MENTAL ILLNESS EXCLUSION: FOUR DELAYS AND A RECOMMENDATION

This is the piece of federal law that has moved most recently, and it is moving now.

What the exclusion says

The Criminal Code, at **section 241.2(2.1)**, states:

“For the purposes of paragraph (2)(a), a mental illness is not considered to be an illness, disease or disability.”

The marginal note reads simply “Exclusion.” The effect is that a person whose **sole** underlying medical condition is a mental illness cannot access assisted dying in Canada. A person with a mental illness alongside another qualifying condition is not excluded by this provision.

Four delays

The exclusion was written as temporary and has been extended three times:

Instrument	Royal assent	Exclusion extended to
Bill C-7	March 2021	March 17, 2023
Bill C-39	March 9, 2023	March 17, 2024
Bill C-62	February 29, 2024	March 17, 2027

March 17, 2027 is still the operative date. As of this writing the law has not been amended again.

June 2026: the committee recommended it never expire

On **June 17, 2026**, the Special Joint Committee on Medical Assistance in Dying presented its report to the House of Commons: *Medical Assistance in Dying and Mental Disorder as the Sole Underlying Medical Condition: A Complex and Challenging Conversation Among Canadians* (45th Parliament, 1st Session), co-chaired by the Hon. Yonah Martin and Marcus Powlowski.

It made a single recommendation:

“Recommendation 1 — That the Government of Canada amend the Criminal Code to indefinitely exclude persons whose sole underlying medical condition is a mental illness from eligibility for medical assistance in dying.”

The report carries dissenting opinions from Senators Moodie, Wallin and Wells and from the Bloc Québécois, along with supplementary opinions.

This is a change in kind, not degree. Every previous parliamentary intervention recommended either proceeding with safeguards or delaying again. This one recommends that the door stay shut permanently. It is the first parliamentary study to say so.

Where it stands now

The federal government has not responded. No Government Response is filed on the committee's page and no bill has been introduced. Justice Minister Sean Fraser said in June 2026 that the government would review the report before deciding, without giving a date. A response is expected in late 2026 or early 2027.

So the law today is unchanged: the exclusion expires March 17, 2027 unless Parliament acts, and a parliamentary committee has recommended that Parliament act to make it permanent.

This is the most time-sensitive statement in this report. It reflects the record as of August 2026 and should be checked against current sources before being relied on.

The disagreement is not between disabled people and everyone else

It would be easy to present this as a fight between disability organizations and autonomy advocates. It is not that clean, and pretending otherwise would misrepresent our own community.

Inclusion Canada welcomed the committee's recommendation and urged the federal government to implement it without delay, pointing to years of testimony from disability organizations, clinicians and people with lived experience.

The Centre for Addiction and Mental Health recommended indefinite extension on clinical grounds: that there is no reliable method to distinguish a request for assisted dying from suicidal intent in a person with mental illness, and no established basis for determining that a mental illness is irremediable.

Dying With Dignity Canada and others take the opposite view, treating the exclusion as a denial of a right the Supreme Court recognized.

Disabled people are on both sides of that. So are people living with mental illness. Section 6 sets out those positions at greater length.

4. ALBERTA'S OWN LAW: BILL 18, AND THE THING NOBODY IS SAYING ABOUT IT

Alberta has passed a law that restricts access to assisted dying more tightly than federal law does.

We want to be direct about this because the expected story runs the other way. Where a province is reducing disability income supports, people reasonably expect to find that same province making death easier to reach. **That is not what the record shows in Alberta.** The province has moved in the opposite direction. Any account that leads with the expected frame is wrong on its first page, and we are not going to publish one.

What it is

Bill 18, the *Safeguards for Last Resort Termination of Life Act*, 2nd Session, 31st Legislature. Sponsored by Mickey Amery, Minister of Justice. A government bill. Passed without amendment.

Stage	Date
First Reading	March 18, 2026
Second Reading	March 31, 2026
Committee of the Whole	April 16, 2026
Third Reading	April 22, 2026 — passed on division
Royal Assent	May 14, 2026
Citation	SA 2026 c S-0.3
Coming into force	on Proclamation

Source: *Legislative Assembly of Alberta, Bill 18 status record.*

A correction to the government's own page

The Government of Alberta's public page on this law states that it received royal assent on **March 18, 2026**.

March 18, 2026 was **First Reading**. A bill cannot receive royal assent on the day it is introduced. The Legislative Assembly's own record shows First Reading on March 18 and royal assent on May 14, nearly two months later.

We note this without attributing intent. It is an error on a government page about a law governing assisted death, and it is the kind of error that leads people to wrong conclusions about when something took effect.

The status: passed, and not in force

This is the most important fact in this report and almost nobody is reporting it.

Section 16 of the Act reads: **“This Act comes into force on Proclamation.”**

That means royal assent did not bring it into effect. A separate step is required — a proclamation issued by Order in Council — and until that happens the Act has no operative force.

The Alberta King's Printer, the province's authoritative statute publisher, lists the Act as:

Safeguards for Last Resort Termination of Life Act — (Awaiting Proclamation)
Chapter: S-0.3 2026
Status: Awaiting Proclamation

with catalogue currency of **August 9, 2026**.

So as of August 9, 2026, Alberta's MAID law had been passed, had received royal assent, and was not in force.

What that means, stated carefully

No Alberta statute currently restricts who may access assisted dying in this province. The restrictions described below are law on the books with no operative effect until proclamation.

We want to be precise about the limits of that statement, because the temptation to overstate it is strong and the cost of getting it wrong is high.

What we can say is that there is no provincial **statutory** bar operating today. What we have **not** examined, and therefore will not claim, is whether access is practically available. Health service delivery, facility-level policies and non-statutory directives can all narrow what is available to a person without any legislation at all. Nobody should read this section as an assurance that a particular door is open. It says only that this particular law is not yet closing it.

And it can change without warning. A proclamation can issue on any day the Lieutenant Governor in Council chooses. There is no advance public notice, no scheduled date, and no way for a member of the public to see it coming. Whether Alberta's restrictions apply to a given person in a given week turns on an administrative step that is not published in advance.

Status verified against the Alberta King's Printer, catalogue currency August 9, 2026. This must be re-checked before this report is relied upon.

What the Act does, provision by provision

Read from the bill text. Section numbers are given so anyone can check.

- **Limits eligibility to Track 1 only.** Section 4(2)(c)(i) requires that the individual's natural death be “reasonably foreseeable within **12 months** of the date of the opinion,” and 4(2)(c)(ii) requires that the individual meet the federal eligibility criteria.
- **Prohibits mental illness as a sole underlying condition.** Section 4(2)(a)(i) requires that the request “is not based on a mental illness being the individual's sole underlying medical condition.”
- **Limits access to adults.** Section 4(2)(b), 18 and over.
- **Prohibits advance requests.**
- **Prohibits out-of-province referral for an assessment.** Section 5(4): “A practitioner must not refer an individual to a person or service in another jurisdiction for the purpose of requesting an opinion of a type described in section 4(2)(c).”
- **Creates exclusion zones of 150 metres.** Section 9(1) defines an exclusion zone as “an area that is 150 metres from the legal boundary of the prescribed health care facility.” The 150-metre figure is fixed in the statute itself rather than left to regulation. The Minister designates specific zones by order under section 9(3); section 9(5) prohibits providing assisted dying within a zone.
- **Permits facilities to decline.** Health facilities may decline to permit assisted dying on their premises, and conscience protections are extended to practitioners and facilities.
- **Restricts how the subject may be raised.** Practitioners are barred from raising assisted dying unless the patient does, and health facilities are prohibited from publicly displaying information about it.
- **Requires a family member to witness provision,** unless the provider determines that no family member is reasonably available. “Family member” is defined as an adult parent, spouse or partner, child, sibling, grandparent or grandchild.
- **Requires contact with prior care providers.** Assessors must make reasonable efforts to contact every practitioner who was a primary care provider in the preceding 12 months and review the person's health information.

- **Imposes mandatory sanctions.** Part 3, sections 11 and 12, tie contraventions to the *Health Professions Act*, with mandatory cancellation of a practitioner's permit for certain breaches under section 12(1)(a).
- **Protects requests already made.** Section 15 provides that the Act does not apply to a person who made a signed and dated written request before the Act comes into force, nor to a practitioner already in the process of providing an eligibility opinion, a safeguard assessment, or assisted dying itself.

Two effects, and we are naming both

Public argument about this law tends to describe one effect and treat the other as either obvious or illegitimate. Both are real and both land on disabled Albertans.

The first effect: Track 2 is removed in Alberta.

Once this Act is in force, a person whose natural death is not reasonably foreseeable will not be eligible for assisted dying in Alberta, even though they would be eligible under federal law. That is a large group. Disabled people with serious, permanent, non-terminal conditions are precisely the people Track 2 covers, and 732 people accessed it across Canada in 2024.

The referral prohibition compounds this. A practitioner cannot direct someone to an assessment in another province. A person with resources may find their own way; a person without them may not.

The second effect: protection against being steered toward death.

The same restriction is, to many disabled people, exactly what they have been asking for. The fear of being offered death instead of support is documented, it is old, and it is not irrational. A law that removes Track 2 in this province removes that possibility along with the access.

We are not ranking these. A community that contains both people is our community, and this report does not tell either of them that they are wrong.

What we have not been able to establish

Whether the Act will survive a legal challenge. Section 5 sets out the constitutional question and the arguments on both sides. No challenge has been filed as of August 2026.

When proclamation will occur. There is no published date and no mechanism for advance notice.

Sections 5 through 9 follow: the constitutional question; the disability community's positions; income, housing and access in the documented record; what the record establishes and what it does not; and open questions.

SOURCE INDEX

Every claim of fact in sections 1 to 4 traces to one of the sources below. Each entry shows what it was used for, whether it was opened directly, and the date it was opened. Where a source could not be opened, or where a claim rests on something other than a primary document, it is marked and the limitation stated.

How to read the tags

OPENED — the document itself was read and the claim taken from its text.

POINT IN TIME — true on the date shown; can change without notice; re-check before relying on it.

SUPPORTED NEGATIVE — searched for and not found; absence of evidence, stated as such rather than as proof.

Federal law and case law

Source	Used for	Status
<i>Carter v Canada (AG)</i> , 2015 SCC 5	The 2015 ruling striking the prohibition; s.7 Charter grounds; February 6, 2015 decision date	OPENED 2026-08-11
<i>Truchon c PGC</i> , 2019 QCCS 3792	Striking of the reasonably-foreseeable-death requirement	OPENED 2026-08-11
Criminal Code, s.241.2, consolidated text laws-lois.justice.gc.ca	Verbatim wording of the s.241.2(2.1) mental illness exclusion and its marginal note	OPENED 2026-08-11
Department of Justice Canada, MAID background justice.gc.ca/eng/cj-jp/ad-am/bk-di.html	Bills C-14, C-7, C-39 and C-62; the two-track structure; Track 2 safeguards; the March 17, 2027 expiry	OPENED 2026-08-11

The parliamentary committee

Source	Used for	Status
Special Joint Committee on Medical Assistance in Dying, report presented June 17, 2026 parl.ca/DocumentViewer/en/45-1/AMAD/report-1	Full report title; co-chairs; presentation date; Recommendation 1 quoted verbatim; the dissenting and supplementary opinions	OPENED 2026-08-11
Absence of a Government Response on the committee page; no bill introduced	The statement that the federal government has not responded and the law is unchanged	SUPPORTED NEGATIVE 2026-08-11

The characterization that this is the first parliamentary study to recommend permanent exclusion rather than a further delay is our description of the record, not a phrase inside the report. Earlier parliamentary work recommended proceeding with safeguards or a temporary delay.

Alberta's law

Source	Used for	Status
Legislative Assembly of Alberta, Bill 18 status record assembly.ab.ca — billinfo12110	Every date in the passage table; sponsor; that it passed without amendment; that third reading passed on division; the SA 2026 c S-0.3 citation	OPENED 2026-08-11

Source	Used for	Status
Bill 18 text, Legislative Assembly PDF docs.assembly.ab.ca	Every provision cited by section number, including the s.16 coming-into-force clause and the 150-metre figure fixed in s.9(1)	OPENED 2026-08-11
Alberta King's Printer, Laws Online catalogue record for S-0.3 2026	The Awaiting Proclamation status and the August 9, 2026 catalogue currency	OPENED POINT IN TIME currency 2026-08-09
Government of Alberta MAID page alberta.ca/protecting-vulnerable-albertans-seeking-maid	The published royal assent date of March 18, 2026, which the Assembly record contradicts	OPENED 2026-08-11
Government of Alberta Bill 18 fact sheet alberta.ca/system/files	The family-member witness requirement and its definition; the advance request prohibition	OPENED 2026-08-11
No challenge, court application or constitutional reference filed against c S-0.3	The statement that no legal challenge has been filed	SUPPORTED NEGATIVE 2026-08-11

Data

Source	Used for	Status
Health Canada, Sixth Annual Report on Medical Assistance in Dying in Canada, 2024 data, published November 28, 2025 canada.ca	The 16,499 total; the 6.9% year-over-year increase; the cumulative figure since 2016; the Track 1 and Track 2 splits for 2024 and 2023	OPENED 2026-08-11

Positions attributed to organizations

Organization	Used for	Status
Inclusion Canada	Its welcome of the committee recommendation and call for implementation without delay	OPENED 2026-08-11
Centre for Addiction and Mental Health	Its clinical grounds for recommending indefinite extension	OPENED 2026-08-11
Dying With Dignity Canada	Its opposing position on the exclusion	OPENED 2026-08-11

What is not sourced here, and why

Nothing in sections 1 to 4 rests on commentary, advocacy analysis or news reporting. Several commentators were read while preparing this report and were useful for knowing where to look. None of them is cited as authority for a claim, and none of the figures in these sections came from one.

Two claims elsewhere in this dive were excluded from these sections because they could not be verified. A polling figure on Albertan support for MAID access, published by an advocacy organization, has not been traced to its underlying survey and does not appear here. A figure for the proportion of Alberta MAID patients requiring transfer to another facility could not be confirmed against a primary Alberta Health Services number and does not appear here.

The practical availability of Track 2 in Alberta has not been examined. Section 4 states only that no provincial statute is currently operating. Service delivery, facility-level policy and non-statutory directives were not reviewed and no claim is made about them.

What must be re-checked before this report is relied on

- **Proclamation of SA 2026 c S-0.3.** The King's Printer record and the Alberta Gazette Part I. A proclamation can issue on any day and there is no advance notice.
- **The federal response to the June 2026 committee report.** None as of August 2026; expected late 2026 or early 2027.
- **Whether any challenge has been filed against c S-0.3.** None as of August 2026. A newly filed application may not be indexed immediately.

On the standard used here. This campaign has published figures that later proved untraceable to any government document, and has corrected them publicly. This index exists so that anyone can check our work without taking our word for it, and so that the difference between what we opened and what we were told is visible on the page rather than held in our heads.

The Alberta Disability System Breakdown — Advocate
St. Albert, Alberta | August 2026
albertadisabilitybreakdown@outlook.com